

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X
ALEX VIELMAN,

Plaintiff,

-against-

Plaintiff designates
Kings County as the
place of trial

Basis of venue is
county of occurrences

SUMMONS

THE CITY OF NEW YORK,
NYPD OFFICER SCOTT GOMEZ,
NYPD OFFICER MICHAEL PAPPALARDI,
NYPD DETECTIVE GREGORY GORDON and
NYPD OFFICER SHASHAWTA NATH,

Defendants.

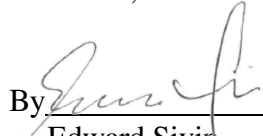
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To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney within 20 days after service of this summons (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
October 22, 2020

SIVIN, MILLER & ROCHE, LLP

By 

Edward Sivin
Attorneys for Plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

To:

The City of New York: 100 Church Street, New York, NY 10007

NYPD Officer Scott Gomez: c/o NYPD Midtown North Detective Squad

NYPD Officer Michael Pappalardi, c/o NYPD 72nd Pct. Detective Squad

NYPD Detective Gregory Gordon, c/o NYPD 72nd Pct. Detective Squad

NYPD Officer Shashawta Nath, c/o NYPD 72nd Pct.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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ALEX VIELMAN,

Plaintiff,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK,
NYPD OFFICER SCOTT GOMEZ,
NYPD OFFICER MICHAEL PAPPALARDI,
NYPD DETECTIVE GREGORY GORDON and
NYPD OFFICER SHASHAWTA NATH,

Defendants.

----- X

Plaintiff, by his attorneys SIVIN, MILLER & ROCHE, LLP, as and for his
complaint herein, alleges as follows, upon information and belief:

THE PARTIES

1. That at all times herein mentioned, plaintiff was and is a resident of the County of Kings, City and State of New York.
2. That at all times herein mentioned, defendant The City of New York (hereinafter “the City”) was and is a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.
3. That prior to the institution of this action and within ninety (90) days from the dates when the causes of action accrued herein, notices of claim and intention to sue were duly served upon and filed with defendants on behalf of plaintiff; that this action was not commenced until the expiration of thirty (30) days after such notices of claim and intention to sue were presented and defendants have neglected and/or refused to make adjustment or payment thereon, and this action is being commenced within one year and ninety days after the causes of action

accrued herein.

4. That at all times herein mentioned, the City operated, controlled, managed, and maintained the New York Police Department (hereinafter the “NYPD”).

5. That at all times herein mentioned, defendant NYPD Officer Scott Gomez (hereinafter “Gomez”) was and is an officer employed by the NYPD.

6. That at all times herein mentioned, Gomez was acting within the course and scope of his employment with the NYPD.

7. That at all times herein mentioned, Gomez was acting under color of state law.

8. That at all times herein mentioned, defendant NYPD Officer Michael Pappalardi (hereinafter “Pappalardi”) was and is an officer employed by the NYPD.

9. That at all times herein mentioned, Pappalardi was acting within the course and scope of his employment with the NYPD.

10. That at all times herein mentioned, Pappalardi was acting under color of state law.

11. That at all times herein mentioned, defendant NYPD Detective Gregory Gordon (hereinafter “Gordon”) was and is a detective employed by the NYPD.

12. That at all times herein mentioned, Gordon was acting within the course and scope of his employment with the NYPD.

13. That at all times herein mentioned, Gordon was acting under color of state law.

14. That at all times herein mentioned, defendant NYPD Officer Shashawta Nath (hereinafter “Nath”) was and is an officer employed by the NYPD.

15. That at all times herein mentioned, Nath was acting within the course and scope of his employment with the NYPD.

16. That at all times herein mentioned, Nath was acting under color of state law.

THE FACTS

17. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

18. That this lawsuit arises out of a series of events involving a pattern and practice of unconstitutional conduct and actions by officials of the NYPD against plaintiff, beginning on or about September 17, 2019.

19. That on September 17, 2019, plaintiff was a convicted felon and parolee, who had a history of arrests and/or convictions for burglary, trespass, and related offenses.

20. That beginning on or about September 17, 2019, and for a period of approximately one year thereafter, NYPD officers, deeming plaintiff to be an easy “mark” for the solving and resolution of reports of alleged criminal conduct, arrested plaintiff and charged him with various burglaries, trespasses, and related offenses of which plaintiff was innocent and of which the officers lacked probable cause to believe plaintiff was guilty.

The September 17, 2019 Arrest and Prosecution

21. That on or about September 17, 2019, in the County of Kings, City and State of New York, NYPD officers, including but not limited to Gomez, arrested plaintiff and/or caused plaintiff to be arrested for a burglary of which plaintiff was innocent and of which the officers did not have probable cause to believe that plaintiff was guilty.

22. That on or about September 17, 2019, NYPD officers, including but not limited to Gomez, initiated and/or caused to be initiated a criminal prosecution of plaintiff in which plaintiff was charged with a burglary of which he was innocent and of which the officers did not

have probable cause to believe that plaintiff was guilty.

23. That in support of the aforementioned criminal prosecution, Gomez initiated and signed a Criminal Court Complaint in which he made accusations against plaintiff that were false and that Gomez knew to be false.

24. That in support of the aforementioned criminal prosecution, Gomez withheld exculpatory evidence from fellow officers, fabricated evidence, and made statements to fellow officers and to the Office of the District Attorney that were false and that Gomez knew to be false.

25. That the aforementioned exculpatory evidence, fabricated evidence, and false statements collectively constituted material evidence, and evidence that likely would persuade a court and/or jury on the issue of plaintiff's guilt or innocence.

26. That the aforementioned exculpatory evidence, fabricated evidence, and false statements resulted in a significant deprivation of plaintiff's liberty.

27. That as a result of the aforementioned actions of the NYPD officers, plaintiff was incarcerated for a period of approximately five weeks.

28. That on or about December 4, 2019, the criminal charge against plaintiff was dismissed and the criminal proceeding terminated favorably to plaintiff.

The February 21, 2020 Arrest and Prosecution

29. That on or about February 21, 2020, in the County of Kings, City and State of New York, NYPD officers, including but not limited to Pappalardi, arrested plaintiff and/or caused plaintiff to be arrested for a criminal trespass of which plaintiff was innocent and of which the officers did not have probable cause to believe that plaintiff was guilty.

30. That on or about February 21, 2020, NYPD officers, including but not limited to Pappalardi, initiated and/or caused to be initiated a criminal prosecution of plaintiff in which

plaintiff was charged with multiple counts of criminal trespass of which he was innocent and of which the officers did not have probable cause to believe that plaintiff was guilty.

31. That in support of the aforementioned criminal prosecution, Pappalardi initiated and signed a Criminal Court Complaint in which he made accusations against plaintiff that were false and that Pappalardi knew to be false.

32. That in support of the aforementioned criminal prosecution, Pappalardi withheld exculpatory evidence from fellow officers, fabricated evidence, and made statements to fellow officers and to the Office of the District Attorney that were false and that Pappalardi knew to be false.

33. That the aforementioned exculpatory evidence, fabricated evidence, and false statements collectively constituted material evidence, and evidence that likely would persuade a court and/or jury on the issue of plaintiff's guilt or innocence.

34. That the aforementioned exculpatory evidence, fabricated evidence, and false statements resulted in a significant deprivation of plaintiff's liberty.

35. That as a result of the aforementioned actions of the NYPD officers, plaintiff's parole was violated and plaintiff was incarcerated for a period of approximately two weeks.

36. That as of the drafting of this complaint, the aforementioned criminal charges against plaintiff still are pending, resulting in a continued deprivation of plaintiff's liberty.

The May 1, 2020 Arrest and Prosecution

37. That on or about May 1, 2020, in the County of Kings, City and State of New York, NYPD officers, including but not limited to Gordon and Pappalardi, arrested plaintiff and/or caused plaintiff to be arrested for a burglary of which plaintiff was innocent and of which the officers did not have probable cause to believe that plaintiff was guilty.

38. That on or about May 1, 2020, NYPD officers, including but not limited to Gordon and Pappalardi, initiated and/or caused to be initiated a criminal prosecution of plaintiff in which plaintiff was charged with multiple counts of burglary of which he was innocent and of which the officers did not have probable cause to believe that plaintiff was guilty.

39. That in support of the aforementioned criminal prosecution, Gordon initiated and signed a Criminal Court Complaint in which he made accusations against plaintiff that were false and that Brown knew to be false.

40. That in support of the aforementioned criminal prosecution, Gordon and Pappalardi withheld exculpatory evidence from fellow officers, fabricated evidence, and made statements to fellow officers and to the Office of the District Attorney that were false and that Gordon and Pappalardi knew to be false.

41. That the aforementioned exculpatory evidence, fabricated evidence, and false statements collectively constituted material evidence, and evidence that likely would persuade a court and/or jury on the issue of plaintiff's guilt or innocence.

42. That the aforementioned exculpatory evidence, fabricated evidence, and false statements resulted in a significant deprivation of plaintiff's liberty.

43. That as a result of the aforementioned actions of the NYPD officers, plaintiff was incarcerated for approximately two days.

44. That as of the drafting of this complaint, the aforementioned criminal charges against plaintiff still are pending, resulting in a continued deprivation of plaintiff's liberty.

The May 15, 2020 Arrest and Prosecution

45. That on or about May 15, 2020, in the County of Kings, City and State of New York, NYPD officers, including but not limited to Nath, arrested plaintiff and/or caused plaintiff to

be arrested for criminal possession of stolen property, a crime of which plaintiff was innocent and of which the officers did not have probable cause to believe that plaintiff was guilty.

46. That on or about May 15, 2020, NYPD officers, including but not limited to Nath, initiated and/or caused to be initiated a criminal prosecution of plaintiff in which plaintiff was charged with criminal possession of stolen property, a crime of which he was innocent and of which the officers did not have probable cause to believe that plaintiff was guilty.

47. That in support of the aforementioned criminal prosecution, Nath initiated and signed a Criminal Court Complaint in which he made accusations against plaintiff that were false and that Nath knew to be false.

48. That in support of the aforementioned criminal prosecution, Nath withheld exculpatory evidence from fellow officers, fabricated evidence, and made statements to fellow officers and to the Office of the District Attorney that were false and that Nath knew to be false.

49. That the aforementioned exculpatory evidence, fabricated evidence, and false statements collectively constituted material evidence, and evidence that likely would persuade a court and/or jury on the issue of plaintiff's guilt or innocence.

50. That the aforementioned exculpatory evidence, fabricated evidence, and false statements resulted in a significant deprivation of plaintiff's liberty.

51. That as a result of the aforementioned actions of the NYPD officers, plaintiff was incarcerated.

52. That as of the drafting of this complaint, the aforementioned criminal charges against plaintiff still are pending, resulting in a continued deprivation of plaintiff's liberty.

Pattern and Practice

53. That on other occasions subsequent to September 17, 2019, members of the

NYPD arrested plaintiff and or criminally charged plaintiff with crimes in connection with alleged incidents of burglary, trespass or related offenses, crimes of which plaintiff was innocent and of which the officers knew plaintiff to be innocent.

54. That these additional arrests and charges, viewed in conjunction with the aforementioned arrests of September 17, 2019, February 21, 2020, May 1, 2020, and May 15, 2020, constituted a *de facto* pattern and practice of the NYPD involving violations of plaintiff's constitutional rights.

55. That these additional arrests and charges, viewed in conjunction with the aforementioned arrests of September 17, 2019, February 21, 2020, May 1, 2020, and May 15, 2020, resulted from a deliberate indifference by the City to a pattern of unconstitutional conduct by defendants herein and by other members of the NYPD.

56. That the aforementioned actions of defendants herein were intentional and malicious in nature.

FIRST CAUSE OF ACTION AGAINST ALL DEFENDANTS
(False Arrest/Imprisonment Under NY State Law)

57. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

58. That the aforementioned actions of defendants constitute false arrests and false imprisonments of plaintiff, for which Gomez, Pappalardi, Gordon, and Nath are liable under New York state law and for which the City is vicariously liable under the doctrine of respondeat superior.

SECOND CAUSE OF ACTION AGAINST DEFENDANTS
GOMEZ, PAPPALARDI, GORDON and NATH
(42 USC § 1983 Claim Arising From False Arrest/Imprisonment)

59. Plaintiff repeats and realleges each and every allegation set forth above as

though fully set forth at length herein.

60. That the aforementioned actions of Gomez, Pappalardi, Gordon, and Nath in causing the false arrests and false imprisonments of plaintiff constitute illegal seizures and deprivations of liberty and due process of plaintiff in violation of rights guaranteed to plaintiff under the Fourth, Fifth, and Fourteenth Amendments to the US Constitution, and entitle plaintiff to recover damages pursuant to 42 USC § 1983.

THIRD CAUSE OF ACTION AGAINST ALL DEFENDANTS
(Malicious Prosecution Under NY State Law)

61. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

62. That the aforementioned actions of defendants constitute malicious prosecutions of plaintiff, for which Gomez, Pappalardi, Gordon, and Nath are liable under New York state law and for which the City is vicariously liable under the doctrine of respondeat superior.

FOURTH CAUSE OF ACTION AGAINST DEFENDANTS
GOMEZ, PAPPALARDI, GORDON and NATH
(42 USC § 1983 Claim Arising From Malicious Prosecution)

63. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

64. That the aforementioned actions of Gomez, Pappalardi, Gordon, and Nath in causing the malicious prosecutions of plaintiff constitute illegal seizures and deprivations of liberty and due process of plaintiff in violation of rights guaranteed to plaintiff under the Fourth, Fifth, and Fourteenth Amendments to the US Constitution, and entitle plaintiff to recover damages pursuant to 42 USC § 1983.

FIFTH CAUSE OF ACTION AGAINST DEFENDANTS**GOMEZ, PAPPALARDI, GORDON and NATH**

(Denial of Right to Fair Trial Under 42 USC Section 1983)

65. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

66. That the aforesaid actions by Gomez, Pappalardi, Gordon, and Nath constitute denials of plaintiff's right to a fair trial, in violation of plaintiff's rights under the Fifth, Sixth and Fourteenth Amendments to the U.S. Constitution, and entitle plaintiff to recover monetary damages under 42 USC Section 1983.

FIFTH CAUSE OF ACTION AGAINST DEFENDANTS**GOMEZ, PAPPALARDI, GORDON and NATH**

(*Brady* Violations)

67. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

68. That the aforesaid actions by Gomez, Pappalardi, Gordon, and Nath constitute violation of plaintiff's due process rights guaranteed by the Fourteenth Amendment to the U.S. Constitution, as articulated in *Brady v. Maryland*, 373 U.S. 83 (1963), and entitle plaintiff to recover monetary damages under 42 USC Section 1983.

FIFTH CAUSE OF ACTION AGAINST DEFENDANTS**GOMEZ, PAPPALARDI, GORDON and NATH**

(*Manuel* Claims)

69. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

70. That the aforesaid actions by Gomez, Pappalardi, Gordon, and Nath in causing plaintiff to be incarcerated and detained without probable cause and/or based on fabricated evidence

constitute a violation of plaintiff's constitutional rights, as articulated in *Manuel v. City of Joliet*, 137 S. Ct. 911, and entitle plaintiff to recover monetary damages under 42 USC Section 1983.

FIFTH CAUSE OF ACTION AGAINST THE CITY
(Negligent Training, Retention, and Supervision)

71. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

72. That the aforesaid actions by Gomez, Pappalardi, Gordon, and Nath and the resulting injuries to plaintiff followed and were the result of the negligence of the City and the NYPD in its training, retention, and supervision of Gomez, Pappalardi, Gordon, and Nath.

SIXTH CAUSE OF ACTION AGAINST THE CITY
(*Monell* Claim)

73. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

74. That the aforesaid actions by Gomez, Pappalardi, Gordon, and Nath and the resulting injuries to plaintiff followed and were the result of an unconstitutional pattern and practice of the City and the NYPD.

75. That by virtue of the foregoing, plaintiff is entitled to recover monetary damages from the City under 42 U.S.C. § 1983, pursuant to *Monell v. Dep't of Social Servs. Of N.Y.C.*, 436 U.S. 658.

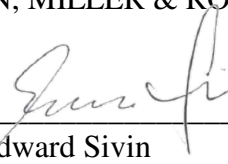
WHEREFORE, plaintiff demands judgment against all defendants on the foregoing causes of action in the form of compensatory damages in amounts that exceed the jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this matter, and plaintiff also demands punitive damages against Gomez, Pappalardi, Gordon, and Nath, in amounts that exceed the jurisdictional limitations of all lower courts that otherwise

would have jurisdiction over this matter, and plaintiff also demands attorney's fees against all defendants pursuant to 42 USC § 1988, and the costs and disbursements of this action.

Dated: New York, New York
October 22, 2020

Yours, etc.
SIVIN, MILLER & ROCHE, LLP

By



Edward Sivin

Attorneys for Plaintiff
20 Vesey Street, Suite 1400
New York, NY 10007
(212) 349-0300

Index No.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

ALEX VIELMAN,

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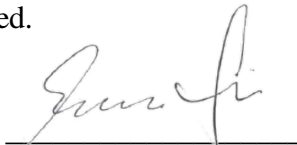
VERIFIED COMPLAINT

SIVIN, MILLER & ROCHE, LLP

Attorneys for Plaintiff
20 Vesey Street, Suite 1400
New York, NY 10007
(212) 349-0300
FAX (212) 406-9462

Certification Pursuant to 22 NYCRR §130-1.1a

Edward Sivin hereby certifies that, pursuant to 22 NYCRR § 130-1.1a, the enclosed papers are not frivolous nor frivolously presented.



EDWARD SIVIN

Dated: New York, New York
October 22, 2020

VERIFICATION

EDWARD SIVIN, an attorney duly admitted to practice law in the State of New York, hereby affirms the following, under penalty of perjury:

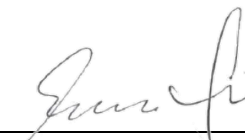
That I am the attorney for the plaintiff(s) in the within action.

That I have read the foregoing complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be upon information and belief; and as to those matters I believe it to be true.

That the reason this verification is made by your affirmant and not by the plaintiff(s) is that plaintiff(s) does not reside in the County where your affirmant maintains his office.

That the grounds for your affirmant's belief as to all matters not stated upon my knowledge are as follows: records, reports, facts and documents contained in plaintiff(s) file maintained by your affirmant's office.

Dated: New York, New York
October 22, 2020



EDWARD SIVIN